

SECTION 1

LAW AND LEGISLATION

Lesson

1

Topic

Understand law

Understand force

Understand offences

Use

Reference material for teaching, revision, and note taking

Key principle: Close protection operatives do not have powers beyond those of the average citizen. They must act within the law at all times and be able to justify their actions.

Introduction

This SECTION explains the legal framework relevant to close protection work, including the difference between civil and criminal law, common offences, the use of force, citizen's arrest

powers, and practical conflict resolution.

Close Protection and the Law

Close protection officers must not exceed the law. No additional authority is afforded to the close protection industry beyond the powers available to an ordinary citizen.

In day-to-day work, an operative may need to de-escalate a confrontation using communication skills, or in an extreme situation may need to use force to protect a principal

for that reason, every operative needs a sound understanding of the implications of their actions and the limits of their powers.

A good knowledge of law and legislation helps an operative carry out the role safely, lawfully, and professionally.

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GUARDIAN TRAINING – CLOSE PROTECTION MANUAL

Understanding Civil law and Criminal law

Civil law is non-criminal law. Civil cases involve complaints by individuals or organisations against another individual or organisation in a non-criminal court.

Examples of civil matters include neighbour disputes over property boundaries or a company failing to fulfil its side of an agreement.

Criminal law addresses offences against society. Responsibility for upholding the law rests with the police.

Criminal law changes over time through Acts of Parliament that create statute law.

A close protection officer, while acting in that role, must uphold the law and assist relevant agencies as necessary.

Common criminal offences relevant to close protection

1. Assault and battery: intentionally or recklessly inflicting harm on another person.
 2. Battery: intentionally or recklessly applying unnecessary force to another person.
 3. Common assault (section 39, Criminal Justice Act 1988): assault without inflicting injury.
- Examples include spitting, pushing, or poking.

4. Actual bodily harm, or ABH (section 47): assault causing actual bodily harm, such as broken or lost teeth or broken bones.
5. Grievous bodily harm, or GBH (section 20): more serious injury, including wounds that break the skin, visual disfigurement, coma, or broken or displaced bones.
6. Grievous bodily harm with intent: as above, but where the defendant intentionally set out to cause GBH.
7. Theft: dishonest appropriation of another person's property with the intention of permanently depriving them of it.
8. Burglary: entering a building, or part of a building, without consent with the intent to